

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

-----X
YOSUA POLANCO,

Plaintiff

- against -

**THE CITY OF NEW YORK,
DETECTIVE ADAM ACOSTA (shield # 019747),**

Defendants.

-----X

Index No. _____

Purchased 1-1-24

**Plaintiff designates Bronx
County as the place of trial**

**The basis of the venue is
where the tort arose**

SUMMONS

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
January 1, 2024



THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
295 Madison Avenue, 12th Floor
New York, NY 10017
(212) 939-7251

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY****YOSUA POLANCO****Plaintiff,****Index No.****Verified Complaint****- against -****THE CITY OF NEW YORK,
DETECTIVE ADAM ACOSTA (shield # 019747),****Defendants.**

Plaintiff, YOSUA POLANCO , by his attorneys THE LAW OFFICES OF ELLIOT S. KAY, by ELLIOT S. KAY, principal, complaining of the defendants, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff YOSUA POLANCO was a resident of State of New York.
2. At all times hereinafter mentioned, Defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT ("POLICE"), was and is an agency of Defendant CITY.
4. At all times hereinafter mentioned, Defendant DETECTIVE ADAM ACOSTA (shield # 019747)("DET. ACOSTA") was and still is an officer employed by Defendants.

BACKGROUND

5. On December 5, 2022, at approximately 12:00 p.m., in the vicinity of 1101 Virginia Avenue in Bronx County, without just cause or provocation, Defendants, including DET. ACOSTA, handcuffed Plaintiff and intentionally and falsely accused Plaintiff of having committed the crime of Robbery in the Second Degree and related charges.

6. On or about December 6, 2022, a criminal complaint was issued at the directive of Defendants and a criminal action against Plaintiff commenced.

7. Plaintiff remained in custody until he was released on or about December 7, 2022.

8. Plaintiff had to defend against false charges until the criminal matter was terminated in favor of Plaintiff on February 16, 2023.

PROCEDURAL POSTURE

9. On March 7, 2023, Plaintiff served a Notice of Claim in writing sworn to on Plaintiff's behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable. On November 16, 2023, the Court granted Plaintiff's application to file a late Notice of Claim.

10. More than thirty days have elapsed since service of said notice and defendant CITY has failed to pay or adjust this claim.

11. A 50-H hearing has been held.

12. This action has been commenced within one year and ninety days after the cause of action of Plaintiff accrued.

13. Plaintiff has duly complied with all conditions' precedent to the commencement of this

action.

FIRST CAUSE OF ACTION: FALSE IMPRISONMENT

14. Paragraphs 1-13 are incorporated by reference as fully set forth herein.

15. Plaintiff was aware of Plaintiff's arrest and confinement as described in paragraphs 5-7, and Plaintiff did not consent to that arrest or confinement.

16. Defendants intended to confine Plaintiff and the confinement was not privileged or authorized by any warrant, order, or other legal right.

17. As a result of being falsely imprisoned by the Defendants, Plaintiff sustained multiple injuries. Plaintiff was denied liberty and Plaintiff suffered emotional distress, humiliation and fear and intimidation for Plaintiff's safety.

SECOND CAUSE OF ACTION: MALICIOUS PROSECUTION

18. Paragraphs 1-17 are incorporated by reference as though fully set forth herein.

19. In arresting Plaintiff, the Defendants acted with malice. The Defendants lacked probable cause to arrest Plaintiff.

20. Upon information and belief, the Defendants, including DET. ACOSTA, possessed information, prior to Plaintiff's Criminal Court arraignment, that established that Plaintiff did not participate in the subject robbery or engage in any criminal activity. Upon information and belief, DET. ACOSTA did not inform the Bronx County District Attorney's Office that he was in possession of this information which exculpated Plaintiff. Likewise, after Plaintiff's Criminal Court arraignment, DET. ACOSTA did not inform the Court or Bronx District Attorney's Office that he possessed information exculpating Plaintiff, including but not limited to Plaintiff's alibi which established that Plaintiff was not in Bronx County at the time of the subject crime.

21. In addition, upon information and belief, DET. ACOSTA generated police paperwork that contained false and misleading information.

22. All charges pending against Plaintiff were dismissed and sealed upon the application of the Bronx County District Attorney on February 16, 2023.

23. As a result of being maliciously prosecuted by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

THIRD CAUSE OF ACTION: BATTERY

24. Paragraphs 1-23 are incorporated by reference as though fully set forth herein.

25. When DET. ACOSTA grabbed Plaintiff and arrested Plaintiff, he subjected Plaintiff to a harmful or offensive bodily contact. DET. ACOSTA intended to make that contact without the consent of Plaintiff.

26. As a result of being battered by DET. ACOSTA, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FOURTH CAUSE OF ACTION: ASSAULT

27. Paragraphs 1-26 are incorporated by reference as though fully set forth herein.

28. DET. ACOSTA, acting as the agent, servant and employee of the Defendants, placed Plaintiff in apprehension of imminent harmful or offensive contact by approaching Plaintiff and violently handcuffing Plaintiff.

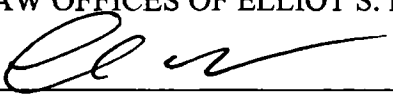
29. As a result of being assaulted by DET. ACOSTA, Plaintiff sustained multiple injuries, including emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: New York, NY
January 1, 2024

Yours, etc.,

THE LAW OFFICES OF ELLIOT S. KAY



BY: ELLIOT S. KAY, ESQ.

Attorney for Plaintiff
295 Madison Avenue, 12th Floor
New York, NY 10017
(212) 939-7251

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

-----X
YOSUA POLANCO,

Index No.

Plaintiff

-against-

**THE CITY OF NEW YORK,
DETECTIVE ADAM ACOSTA (shield # 019747),**

Defendants
-----X

I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff currently resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, NY
January 1, 2024



ELLIOT S. KAY